IN THE NATIONAL COMPANY LAW TRIBUNAL,
SINGLE BENCH, CHENNAI

CA/219/CAA/2018

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of Scheme of Amalgamation

Between

M/s. Oasis Ventures Private Limited
(Transferor Company-I)

And

M/s. Rayce Electronic Intelligence India Private Limited
(Transferor Company-II)

And

M/s. i3 Security Private Limited
(Transferee Company)

Order delivered on 14th January, 2019

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CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)

For Applicant(s): B. Chandra, PCS

ORDER

Per: CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)

1. Under consideration is Application No. CA/219/CAA/2018 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to

dispense with the convening, holding and conducting of meetings of Equity Shareholders of Transferor Company – I & II and Transferee Company and Unsecured Creditors of Transferor Company – II & Transferee Company.

2. **M/s. Oasis Ventures Private Limited: -**

i. The Transferor Company-I viz., M/s. Oasis Ventures Private Limited has 2 (Two) Equity Shareholders. The list of Equity Shareholders is placed at page 71 of the typed set filed with the Application. The consent affidavits given by the Equity Shareholders are placed at pages 213-216 of the typed set filed with the Application, wherein it has been deposed that they do support the Scheme and consent to dispense with convening, holding and conducting the meeting of Equity Shareholders. Therefore, the meeting of the Equity Shareholders of the Transferor Company-I is allowed to be dispensed with.

ii. There are no Secured and Unsecured Creditors in relation to the Transferor Company-1. The certificate issued by the Charted Accountant to this effect is placed at page 131 of the typed set filed with the Application.

3. **M/s. Rayce Electronic Intelligence India Private Limited: -**

i. The Transferor Company-II viz., M/s. Rayce Electronic Intelligence India Private Limited has 2 (Two) Equity Shareholders. The list of Equity Shareholders is placed at page 132 of the typed set filed with the Application. The consent affidavits given by the Equity Shareholders are placed at pages 217-220 of the typed set filed with the Application, wherein it has been deposed that they do support the Scheme. Therefore, the meeting of the Equity Shareholders of the Transferor Company-II is allowed to be dispensed with.

ii. There is no Secured Creditor in relation to the Transferor Company-II. The certificate issued by the

Charted Accountant to this effect is placed at page 194 of the typed set filed with the Application.

iii. There are 7 (Seven) Unsecured Creditors in relation to the Transferor Company-II. The certificate issued by the Charted Accountant to this effect is placed at page 194-195 of the typed set filed with the Application. Out of 7 Unsecured Creditors 6 have given consent Affidavits, which constitutes 98.05% of the total value of the credit. The consent affidavits given by the Unsecured Creditors are placed at pages 196-208 of the typed set filed with the Application. Therefore, the meeting of the Unsecured Creditors is allowed to be dispensed with under clause (9) of the Section 230 of the Companies Act, 2013.

4. **M/s. i3 Security Private Limited: -**

i. The Transferee Company viz., M/s. i3 Security Private Limited has 2 (Two) Equity Shareholders. The consent affidavits given by the Equity Shareholders are placed at pages 209-212 of the typed set filed with the Application, wherein it has been deposed that they

do support the Scheme. Therefore, the meeting of the Equity Shareholders of the Transferee Company is allowed to be dispensed with.

ii. There is no Secured Creditor in relation to the Transferee Company. The certificate issued by the Charted Accountant to this effect is placed at page 61 of the typed set filed with the Application.

iii. There are 4 (Four) Unsecured Creditors in the Transferee Company. The Certificate issued by the Charted Accountant to this effect is placed at page 61-62 of the typed set filed with this application. All the 4 Unsecured Creditors have given their consent affidavits which are placed at pages 63-70 of the typed set filed with this application, wherein it has been deposed that they do support the Scheme. Therefore, the meeting of the Unsecured Creditors of the Transferee Company is allowed to be dispensed with.

5. The Registry is directed to issue notice to the Registrar of Companies, Chennai, Regional Director

(SR), the respective Income Tax offices including Assessing Officer of the I.T. Circle, Reserve Bank of India (RBI), in relation to the Applicant Companies separately and also notice to the Official Liquidator in relation to the Transferor Company-I and the Transferor Company-II with the direction to him to appoint Chartered Accountant on his own for filing report. In case, the statutory authorities to whom the notice is issued are desirous of making any objection/representation, they may do so within 30 days from the date of receipt of the notice. In case no objection/representation is made, it shall be presumed that they/any of them have/has no objection/representation to make.

6. The Applicant Companies are directed to issue private notice to the said authorities/regulators by way of speed post/hand delivery separately. The proof of sending and effecting the service of notice upon them along with the newspaper publication shall be submitted with the supporting affidavit to this Bench along with Company Petition(s).

7. The Applicant Companies are directed to effect publication separately in the newspapers one in English "Trinity Mirror" (Tamilnadu Edition) and another in vernacular "Makkal Kural" (Tamilnadu Edition) provided the said newspapers have wide circulation in the State of Tamilnadu, having not less than 30+2 days before filing the Company Petition(s). The Applicant Companies are directed to upload the notice on their websites and display the notice on the notice board at the Registered Office of their respective companies. The Registry is also directed to display the notice on the notice board of this Bench.

8. Accordingly, the Applications are **allowed**. The Applicant Companies are directed to present the Petition(s) on or before 27.02.2019.

[CH. MOHD. SHARIEF TARIQ]
MEMBER (JUDICIAL)

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